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TAB 13



Board of Education Report

File #: Rep-225-23/24, **Version:** 1

Resolution of Declaration of Need for Fully Qualified Educators

April 9, 2024

Human Resources Division

Action Proposed:

Declare the potential number, type, and subject of emergency permits that may be needed for the ensuing school year and to specify the target languages for emergency bilingual authorizations needed to serve the dual language programs in the District (Attachment A). Below is a list of the estimated number of permits being requested under this Declaration of Need:

Document Type	Number Requested
Emergency CLAD Permit	400
Emergency Bilingual Authorization Permit	60
Emergency Resource Permit	5
Emergency Teacher Librarian Services Permit	20
Emergency Transitional Kindergarten Permit	10
Multiple Subject Limited Assignment Permit	15
Single Subject Limited Assignment Permit	190
Special Education Limited Assignment Permit	160

That the Declaration of Need be approved at the April 9, 2024, meeting of the Board of Education declaring a need for fully qualified teachers and the continued use of emergency permits in the situations described herein.

Background:

Senate Bill 435 (Watson), enacted in January 1988 requires school districts that utilize emergency permits to seek the approval of the governing board annually at a public meeting. In November 1993, Senate Bill 148 (Bergeson) and the resulting Title 5 regulations established an additional requirement to this process. School districts are required to annually submit to the Commission on Teacher Credentialing (CTC) a Declaration of Need for Fully Qualified Educators that has been adopted by the local Board of Education. It is important to note that the emergency permits covered by this Declaration of Need are requested as an add on authorizations for fully credentialed teachers. The only exception to this is the Emergency Transitional Kindergarten Permit, which would only be used if there is no available teacher in the District to cover an ETK assignment at a particular site. This Declaration does not support the hiring of non-credentialed teachers.

For approximately the past 19 years, a major emphasis has been placed on ensuring that all teachers are appropriately certified to teach English learners (ELs). The progress of this endeavor is exemplified by the drastic reduction in teachers with not EL authorization from over 7,000 in 2005 to approximately 26 K-12 teachers as of March 2024. There are currently 441 teachers with emergency Cross-cultural, Language and Academic Development (CLAD) certificates or emergency Bilingual Cross-cultural, Language and Academic

Development (BCLAD) certificates. These teachers are enrolled in classes or taking the appropriate examinations to earn the full EL authorization. The District continues to dismiss teachers who do not take the necessary steps to obtain the EL authorization. Meanwhile, the District continues to support teachers who are in the process of completing coursework or preparing for the exam. The Emergency CLAD and BCLAD permits are the means provided to temporarily certify teachers who are progressing toward full certification.

Additionally, a limited number of emergency permits are used to certify credentialed special education teachers as resource specialists, and credentialed general education teachers as teacher librarians, while they complete the necessary coursework toward additional certification. To date, we have 1 resource specialist permit and 39 teacher librarian emergency permits issued by LAUSD. The Emergency Transitional Kindergarten (ETK) permit is a new permit that the District will be utilizing in emergency situations when a school site is unable to secure an elementary authorized candidate (provisional, intern, or credentialed) to cover their ETK class.

Limited Assignment Permits are requested by school site administrators to authorize credentialed teachers to teach subjects outside of their certification area. Examples of such practice can occur at schools where teachers with practical experience and expertise often teach electives that are related to the school's theme or in elementary and secondary dual language programs. In addition, these permits are also utilized to assist in meeting our special education teacher needs. A teacher who is currently credentialed to teach students with Mild/Moderate eligibilities can, through the use of such a permit, earn a legally authorizing document to also serve students with Moderate/Severe (Extensive Support) eligibilities. The teacher shortage in high need general education academic areas has also resulted in the need to utilize these permits, as credentialed teachers pursue coursework or passage of exams to add subject areas to their existing credential(s). Such permits are closely monitored and are only issued at the request of the school principal and with the consent of the teacher. To date, 339 Limited Assignment Permits have been issued. The Limited Assignment Permit requires that the teacher pursue coursework or pass exams in the subject area of the permit in order to qualify for a renewal. The end result is that the teacher will pass the needed coursework and/or exams to add the authorization to their credential.

Expected Outcomes:

Certificated staff serving under one of the legal authorizations referenced in this Declaration of Need will be provided with guidance on how to earn the full authorization so that it can be added to their credential document. This will result in a stronger teaching force and a richer instructional program for our students.

Board Options and Consequences:

Education Code 44300(a)(3) sets forth the requirements for the Declaration of Need and requires the annual justification to be made in the form of a motion adopted by the governing board of the district at a regularly scheduled meeting of the governing board. The motion may not be part of the consent agenda and shall be entered in the minutes of the meeting.

If the Declaration of Need is not approved, we will not be able to legally authorize teachers in the various areas referenced. This will potentially result in increased misassignments and less instructional options for our students.

Policy Implications:

This action does not change District policy.

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Budget Impact:

There is no impact on the District's budget.

Student Impact:

The goal of the Human Resources Division is to ensure that there is an appropriately authorized teacher in every classroom. The Declaration of Needs affords the District the ability to legally authorize certificated staff in additional subject areas while they pass the coursework and/or exams necessary to add additional authorizations to their credentials.

Equity Impact:

Not applicable

Issues and Analysis:

Not applicable

Attachments:

Attachment A - Declaration of Need for Fully Qualified Educators - Form CL-500 6/2021

Attachment B - Target Languages for Bilingual Authorization Permits

Attachment C - LAUSD/University Intern Programs

Attachment D - Authorizations for Single Subject World Language Limited Assignment Permits

Informatives:

Not applicable

Submitted:

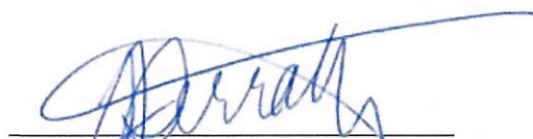
03/08/2024

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RESPECTFULLY SUBMITTED,

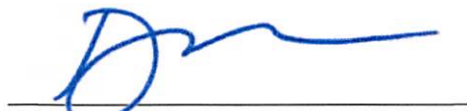
APPROVED & PRESENTED BY:


ALBERTO M. CARVALHO
Superintendent


FRANCISCO J. SERRATO
Chief Human Resources Officer
Human Resources Division

REVIEWED BY:

APPROVED & PRESENTED BY:


DEVORA NAVERA REED
General Counsel


PEDRO SALCIDO
Deputy Superintendent
Business Services & Operations

☒ Approved as to form.

REVIEWED BY:


NOLBERTO DELGADILLO
Deputy Chief Business Officer, Finance

☒ Approved as to budget impact statement.



State of California
Commission on Teacher Credentialing
Certification Division
1900 Capitol Avenue
Sacramento, CA 95811-4213

Email: credentials@ctc.ca.gov
Website: www.ctc.ca.gov

DECLARATION OF NEED FOR FULLY QUALIFIED EDUCATORS

Original Declaration of Need for year: 2024

Revised Declaration of Need for year: _____

FOR SERVICE IN A SCHOOL DISTRICT OR DISTRICT/COUNTY AUTHORIZED CHARTER SCHOOL

Name of District or Charter: Los Angeles Unified School District District CDS Code: 59

Name of County: Los Angeles County CDS Code: 64733

By submitting this annual declaration, the district is certifying the following:

- A diligent search, as defined below, to recruit a fully prepared teacher for the assignment(s) was made
- If a suitable fully prepared teacher is not available to the school district, the district will make a reasonable effort to recruit based on the priority stated below

The governing board/body of the school district or charter school specified above adopted a declaration at a regularly scheduled public meeting held on 4/9/2024 certifying that there is an insufficient number of certificated persons who meet the district's specified employment criteria for the position(s) listed on the attached form. The attached form was part of the agenda, and the declaration did NOT appear as part of a consent calendar.

► Enclose a copy of the board agenda item

With my signature below, I verify that the item was acted upon favorably by the board. The declaration shall remain in force until June 30, 2025.

Submitted by (Superintendent, Board Secretary, or Designee):

<u>Alberto M. Carvalho</u>	<u></u>	<u>Superintendent</u>
<i>Name</i>	<i>Signature</i>	<i>Title</i>

<u>213-241-8442</u>	<u>213-241-7000</u>	<u></u>
<i>Fax Number</i>	<i>Telephone Number</i>	<i>Date</i>

Office of the Superintendent, 333 S. Beaudry Ave., 24th Floor, Los Angeles, CA 90017

Mailing Address

alberto.carvalho@lausd.net

Email Address

FOR SERVICE IN A COUNTY OFFICE OF EDUCATION, STATE AGENCY OR NONPUBLIC SCHOOL AGENCY

Name of County _____ County CDS Code _____

Name of State Agency _____

Name of NPS/NPA _____ County of Location _____

The Superintendent of the County Office of Education or the Director of the State Agency or the Director of the NPS/NPA specified above adopted a declaration on ____/____/____, at least 72 hours following his or her public announcement that such a declaration would be made, certifying that there is an insufficient number of certificated persons who meet the county's, agency's or school's specified employment criteria for the position(s) listed on the attached form.

The declaration shall remain in force until June 30, _____.

► **Enclose a copy of the public announcement**

Submitted by Superintendent, Director, or Designee:

Name	Signature	Title
Fax Number	Telephone Number	Date
Mailing Address		
EMail Address		

- *This declaration must be on file with the Commission on Teacher Credentialing before any emergency permits will be issued for service with the employing agency*

AREAS OF ANTICIPATED NEED FOR FULLY QUALIFIED EDUCATORS

Based on the previous year's actual needs and projections of enrollment, please indicate the number of emergency permits the employing agency estimates it will need in each of the identified areas during the valid period of this Declaration of Need for Fully Qualified Educators. This declaration shall be valid only for the type(s) and subjects(s) identified below.

This declaration must be revised by the employing agency when the total number of emergency permits applied for exceeds the estimate by ten percent. Board approval is required for a revision.

Type of Emergency Permit	Estimated Number Needed
CLAD/English Learner Authorization (applicant already holds teaching credential)	400
Bilingual Authorization (applicant already holds teaching credential)	60
List target language(s) for bilingual authorization: See Attachment A	
Resource Specialist	5
Teacher Librarian Services	20
Emergency Transitional Kindergarten (ETK)	10

LIMITED ASSIGNMENT PERMITS

Limited Assignment Permits may only be issued to applicants holding a valid California teaching credential based on a baccalaureate degree and a professional preparation program including student teaching.

Based on the previous year's actual needs and projections of enrollment, please indicate the number of Limited Assignment Permits the employing agency estimates it will need in the following areas. Additionally, for the Single Subject Limited Assignment Permits estimated, please include the authorization(s) which will be requested:

TYPE OF LIMITED ASSIGNMENT PERMIT	ESTIMATED NUMBER NEEDED
Multiple Subject	15
Single Subject	190
Special Education	160
TOTAL	355

Authorizations for Single Subject Limited Assignment Permits

SUBJECT	ESTIMATED NUMBER NEEDED	SUBJECT	ESTIMATED NUMBER NEEDED
Agriculture	0	Mathematics	25
Art	7	Music	3
Business	0	Physical Education	12
Dance	3	Science: Biological Sciences	10
English	45	Science: Chemistry	6
Foundational-Level Math	5	Science: Geoscience	3
Foundational-Level Science	2	Science: Physics	9
Health	30	Social Science	4
Home Economics	2	Theater	2
Industrial & Technology Education	9	World Languages (specify)	13 (see Attachment C)

EFFORTS TO RECRUIT CERTIFIED PERSONNEL

The employing agency declares that it has implemented in policy and practices a process for conducting a diligent search that includes, but is not limited to, distributing job announcements, contacting college and university placement centers, advertising in local newspapers, exploring incentives included in the Teaching as a Priority Block Grant (refer to www.cde.ca.gov for details), participating in state and regional recruitment centers and participating in job fairs in California.

If a suitable fully prepared teacher is not available to the school district, the district made reasonable efforts to recruit an individual for the assignment, in the following order:

- A candidate who qualifies and agrees to participate in an approved internship program in the region of the school district
- An individual who is scheduled to complete initial preparation requirements within six months

EFFORTS TO CERTIFY, ASSIGN, AND DEVELOP FULLY QUALIFIED PERSONNEL

Has your agency established a District Intern program?

☒ Yes ☐ No

If no, explain. _____

Does your agency participate in a Commission-approved college or university internship program?

☒ Yes ☐ No

If yes, how many interns do you expect to have this year? approx 650 (400 DIs and 250 UIs)

If yes, list each college or university with which you participate in an internship program.

See Attachment B

If no, explain why you do not participate in an internship program.

Target Languages for Bilingual Authorization Permits*:

1. Arabic
2. Armenian
3. Cantonese
4. French
5. Korean
6. Filipino (Tagalog)
7. Japanese
8. Mandarin
9. Portuguese
10. Russian
11. Spanish
12. Vietnamese
13. Cambodian, Chiu Chow, Thai, Farsi, Hebrew, German and Persian may also be needed on a limited basis.

*Additional languages may be added based on District need.

LAUSD AND INSTITUTE OF HIGHER EDUCATION INTERN MOUs

Institute of Higher Education	Multiple Subject	Single Subject	Special Education	CNS	Psychology
STATE UNIVERSITY SYSTEM					
CalState TEACH	X	X	X		
California State University, Dominguez Hills	X	X	X	X	
California State University, East Bay		X			
California State University, Fullerton	X				
California State University, Los Angeles	X	X	X		
California State University, Long Beach	X	X	X	X	X
California State University, Northridge	X	X	X	X	X
Cal State Poly Pomona	X	X	X		
San Diego State University					X
UNIVERSITY OF CALIFORNIA SYSTEM					
University of San Francisco				X	
University of Merced	X	X	X		
PRIVATE COLLEGES/UNIVERSITIES					
Adams State University				X	
Alliant International University	X	X	X	X	X
Azusa Pacific University	X	X	X	X	X
Umass Global (formally Brandman), Antelope Valley	X	X	X		
Brandman University, Irvine					X
California Lutheran University	X	X	X		
Capella University	X	X	X	X	X
Chapman University, Orange	X				X
Concordia University				X	
Loyola Marymount University	X	X	X	X	X
Mount Saint Mary's University	X	X	X		
National University	X	X	X	X	X
Pacific Oaks College	X	X	X		
Pepperdine University	X	X			
University of La Verne	X	X	X	X	
University of Phoenix	X	X			
University of Redlands	X	X	X	X	X
Western Governors University	X	X	X		

AUTHORIZATION(S) FOR SINGLE SUBJECT WORLD LANGUAGE LIMITED ASSIGNMENT PERMITS	ESTIMATED NUMBER
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World Language: French	2
World Language: Russian	1
World Language: Spanish	5
World Language: ELD	4
World Language: Korean	1